

tentative ruling.

The Snyders are ordered to file and serve their complaint in intervention no later than fourteen (14) days from of entry of this order.

18. 1:30 PM CASE NUMBER: C26-00183
CASE NAME: AURA MANAGEMENT CO. VS. ERIC DOLL
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF COMPLAINT**
FILED BY: DOLL, ERIC
TENTATIVE RULING:

See line 19, below.

19. 1:30 PM CASE NUMBER: C26-00183
CASE NAME: AURA MANAGEMENT CO. VS. ERIC DOLL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:
TENTATIVE RULING:

Summary

Defendants Eric Doll and Venbrook Group, LLC's Demurrer to the Complaint is **overruled**.

Defendants' Motion to Strike the prayer for injunctive relief in Paragraph 63 is **granted** with 20 days' leave to amend. In all other respects, the Motion to Strike is **denied**.

Plaintiffs shall prepare the order and file and serve notice of entry of order.

Background

Plaintiffs Vision of Success, Inc., Bay Area Gold Standard Management, Inc., and Aura Management Co. operate and manage "convenience-store-related" businesses in California (Compl. ¶ 12). Defendants are insurance broker Eric Doll and insurance brokerage firm Venbrook Group, LLC, Doll's employer. This dispute arises from Defendants' alleged marketing and placement of Plaintiffs into a purported "captive" workers' compensation insurance program that Defendants represented would reduce Plaintiffs' premiums and improve Plaintiffs' risk profile, but which Defendants allegedly procured using inaccurate payroll and exposure assumptions. Plaintiffs allege Defendants induced them to purchase the program and make related financial commitments by materially understating Plaintiffs' payroll and exposures and by withholding material information, including the true premium risk and Defendants' financial incentives and commissions.

Plaintiffs allege that after relying on Defendants' representations, Plaintiffs were assessed audit results and premium demands far in excess of what Defendants had quoted and represented, alongside